

## **MINOR NAME CHANGE BEST INTERESTS OF CHILD**

In order to change the name of a minor child, the Court must find that there exists “reasonable and proper cause”. This means that the Court must determine that the name change is in the child’s best interest. To make this determination, the Court must consider the following factors:

1. The effect of the change on the preservation and development of the child’s relationship with each parent;
2. The identification of the child as part of a family unit;
3. The length of time the child has used its last name;
4. The preference of the child if the child is of sufficient maturity to express a meaningful preference;
5. Whether the child’s last name is different than the last name of the child’s residential parent;
6. The embarrassment, discomfort, or inconvenience that may result when a child has a last name different than the residential parent;
7. Parental failure to maintain contact with and support the child; and
8. Any other factor relevant to the best interests of the child.

In filing a petition to change a child’s name, you must address as many of these factors as apply to you. Failure to do so may result in your petition being denied.